

- (ii) direct benefits to particular programmes, institutions or persons in relation to the above objectives.

4.4 The benefit of the Objects would be available to the general public irrespective of caste, creed, language, religion, region, sex.

5. ADDITIONS TO TRUST PROPERTY

5.1 The Trustees may at any time invite and receive or without such invitation receive any voluntary monetary contributions, donations, gifts, subscriptions, grants in cash or in kind either from the Settlor or from any other person(s), whether actual or juristic, or companies or organizations based in India or abroad; and such cash contributions or donations may be accepted by various modes including cheque, demand draft or through electronic means through designated commercial bank accounts of the Trust.

5.2 No conditional Contributions shall be accepted.

5.3 All such Contributions shall be treated as forming part of the Trust Corpus or the Trust Income, as the case may be, being the subject matter of this Trust and shall, subject as aforesaid, be held by the Trustees upon the trusts with and subject to the same powers, provisions, agreements and declarations as those contained in this Deed and be applied accordingly in accordance with the applicable laws.

This trust is established only for the charitable purposes incorporated in these presents and for the noble causes enumerated herein. This Trust is not created by or under the Constitution of India or by any law made by the Parliament or by any State Legislature. This Trust is neither intended to be or is in fact owned, controlled or substantially financed by any Government or any instrumentality of the Government. There is no control of either the Central Government or any State Government/s, either direct or indirect, in functioning of the Trust in any manner whatsoever. The composition of the Board of Trustees consisting of holders of public office *ex officio* is merely for administrative convenience and for smooth succession to the trusteeship and is neither intended to be nor in fact result into any governmental control in the functioning of the Trust in any manner whatsoever.

The contributions made to the objects of the Trust as stipulated hereinabove or otherwise shall be accepted, held and applied by the Trust respecting the fiduciary relationship between the person/s or entity/ies making contributions and the Trust and the Trust shall fully respect and will not allow any invasion of the privacy of the contributor/s by divulging their names, addresses and/or other details and the details regarding their contributions to anyone except to the tax authorities while making the full and true disclosures which will be made to the tax authorities as and when required by such authorities or required under the relevant taxing statute.

- 5.4 It shall always be lawful for the Trustees in their discretion to decide whether they should invite or accept any such Contributions as aforesaid and they shall at all times be at liberty to refuse any Contributions without giving any reason for such refusal.

6. BOARD OF TRUSTEES

- 6.1 The total strength of the Board of Trustees shall at no time be less than four and more than seven.
- 6.2 The persons holding the following offices shall constitute the Board of Trustees:
- (i) Prime Minister of India (ex-officio);
 - (ii) Minister of Defence, Government of India (ex-officio);
 - (iii) Minister of Home Affairs, Government of India (ex-officio);
 - (iv) Minister of Finance, Government of India (ex-officio);
- 6.3 The Trustees shall hold office *ex-officio* and upon vacating his office shall cease to be a Trustee and shall be replaced automatically without any further act or deed by the person who succeeds to such office. This will be treated as a valid succession for the purpose of law and such a change shall be accepted by the statutory authority registering this trust.
- 6.4 In addition to the trustees referred to in Clause 6.2, the Chairperson of the Board of Trustees shall have the power to nominate three trustees to the Board of Trustees who shall be eminent persons in the field of research, health, science, social work, law, public administration or philanthropy.
- 6.5 Any person appointed a Trustee shall act in a *pro bono* capacity.
- 6.6 The Prime Minister of India shall be the Chairperson of the Board of Trustees and shall preside over the meetings of the Board of Trustees.
- 6.7 Notwithstanding anything to the contrary contained in this Deed, the Chairperson shall be empowered to modify the constitution of the Board of Trustees, including the designation of Vice-Chairperson, as set out in this Deed, from time to time, by executing a written instrument to this effect. To clarify, the Chairperson may, at his discretion, (i) add a person as Trustee; (ii) remove a Trustee; or (iii) replace any existing Trustee with another person as Trustee.
- 6.8 The Prime Minister's Office (PMO) shall provide such administrative and secretarial support to the Trustees for the management and administration of the Trust, as may be required by the Trustees including coordinating with the Advisory Board.